9070_Schedule 4

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SERVICE SCHEDULE NO. 4 - TRANSPORTATION SERVICES

This Service Schedule No. 4 for Transportation Services ("Schedule") is attached to and made part of that certain Master Services Agreement dated November 6, 2006, (the "MSA") by and between UPS Supply Chain Solutions, Inc. ("SCS") and Actavis, Inc., ("Client") as of November 6, 2006 (the "Effective Date"). The terms and conditions of the MSA are incorporated herein by reference. Terms not defined in this Schedule shall have the meaning set forth in the MSA.

1. **Provision of Services.** SCS will provide transportation services to support Client's logistics requirements related to transportation (the "Services"), in accordance with this Schedule and all bills of lading and other transportation documents issued by SCS and carriers, each of which is incorporated into this Schedule by reference. In the event of a conflict between any bill of lading or other transportation document and this Schedule, this Schedule will control. Client acknowledges that this Schedule does not provide for the handling or transportation of Hazardous, Dangerous or Regulated Goods. Unless otherwise specified in a Services Schedule, SCS shall not be required to arrange for transportation of Goods in a special environment, including but not limited to air-conditioned, cooled, chilled or frozen environments.

2. **Term and Termination.** The Initial Term of this Schedule shall commence on the Effective Date and shall continue up to and including November 5, 2009 ("Initial Term"), unless earlier terminated in accordance with the MSA. Thereafter, this Schedule will automatically renew for successive one-year renewal terms, unless either Party gives the other Party written notice of non-renewal at least one hundred twenty (120) days prior to the expiration of the then-current term. In addition to the termination provisions in the MSA, this Schedule may be terminated by either Party: (a) without cause upon one hundred twenty (120) days prior written notice or (b) with cause upon the commission of a material breach of this Schedule which is not cured within sixty (60) days after the breaching Party receives notice.

3. **Termination Costs.** SCS must make certain financial commitments in order to perform the Services, which SCS expects to recover during the term of this Services Appendix. As a consequence, if this Schedule is terminated (i) by SCS due to Client's breach, failure to make payments when due, insolvency, or bankruptcy, or (ii) by Client for its convenience, Client shall pay SCS the termination cost listed in Exhibit A, if any.

4. **Fees.** The Fees applicable to the Services and the Operating Parameters (as defined below) on which SCS has calculated the Fees are specified on Exhibit A. SCS will invoice Client every two weeks for the Fees as incurred by SCS. Client will pay all Fees on an invoice within fourteen (14) days from date of the invoice. The Fees will be reviewed annually. SCS will use commercially reasonable efforts to minimize or eliminate annual price increases from its core carriers. However, when carrier price increases are incurred, SCS will pass such price increases on to Client, and Client will pay them, notwithstanding anything to the contrary in this Schedule. Any surcharges imposed or paid will be per section 3.0 of the MSA.

5. **Operating Parameters.** SCS has calculated the Fees set forth on Exhibit A based on the Operating Parameters set forth in Exhibit B. The following provision supersedes any conflicting provision of the MSA with regard to this Schedule: In the event of a change in any Operating Parameter, SCS will propose an adjustment to the Fees to respond to the change by providing Client with fifteen (15) days prior written notice thereof, setting forth with reasonable specificity the basis for such adjustment. Client shall not unreasonably withhold its approval of such adjustment. If Client refuses to pay such adjustment, either Party may immediately escalate the matter to senior managers of each Party. Thereafter, if the Parties have still not reached an agreement, the Parties may proceed with resolution of the dispute or termination in accordance with the MSA.

6. **Liability for Loss or Damage.** SCS shall use commercially reasonable efforts to require all carriers (including carriers that are affiliates of SCS) selected by SCS for the purposes of transporting Goods to maintain motor cargo insurance in the amount of $100,000 to cover lost or damaged Goods caused by carrier's negligence. Notwithstanding the foregoing, Client acknowledges and agrees that the carrier of the Goods shall have the risk of any loss of or damage to the Goods managed pursuant to this Schedule while the Goods are in such carrier's care, custody, or control on such terms and conditions as may be agreed to in writing between SCS and the carrier. Notwithstanding anything to the contrary in this Agreement, SCS shall have no liability for any loss of or damage to any Goods transported by a carrier (including carriers that are affiliates of SCS) and, in each such event, any claim of loss of or damage to such Goods shall be governed by the applicable standard terms and conditions of such carrier. In no event shall SCS have any responsibility to pay any amounts which a carrier fails or refuses to pay with respect to any carrier claim.

7. **Carrier Claims.** Upon Client's request and payment of the associated Fees specified on Exhibit A, SCS will file on Client's behalf any claim for any loss or damage to Goods, provided that Client gives SCS written notice of such claim within thirty (30) days after delivery of the Goods by SCS' s carrier or thirty (30) days after Client is given written notice by SCS that loss or damage to the Goods has occurred, whichever is earlier. If Client fails to provide SCS notice of a claim in accordance with this Section, Client's right to bring such claim is waived. SCS will act on behalf of Client in the filing and processing of such claims, and Client will reimburse SCS for all reasonable costs and expenses incurred by SCS in connection with the filing and prosecution of such claims.

8. **Disclaimer.** SCS is not responsible for any consequences that result from any action of Client in following or declining to follow any advice of SCS, it being acknowledged and agreed by Client that all decision-making regarding Client, including without limitation whether or not to follow any advice given by SCS, is solely the responsibility of Client.

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9. Notices. In addition to the requirements of the Notices provision in the MSA, any notice required under this Schedule shall be directed to the following individuals:

To SCS:
UPS Supply Chain Solutions, Inc.

Copy To:
UPS Supply Chain Solutions, Inc.
Attn: Global Contracts Department
12380 Morris Road
Atlanta, Georgia 30328

If to Client:

10. Governing Publications. Transportation of all Goods under this Schedule is subject to the following publications:

1. National Motor Freight Classification ("NMFC") - 100 W series or reissues thereof.
2. U.S. Postal Service Zip Code Directory.
3. P.C. Miler as appropriate to the contracts and shipments involved, in use by SCS at date of shipment.

If any such publication conflicts with this Schedule, this Schedule shall govern.

11. Survival. The following provisions of this Schedule will survive its expiration or termination: Termination Costs, Liability for Loss or Damage, and Carrier Claims.

IN WITNESS WHEREOF, the parties hereto have caused this Schedule to be executed by their duly authorized representatives as of the day and year first written herein.

UPS SUPPLY CHAIN SOLUTIONS, INC.

"SCS"

Signature

Marvia B. Hobby

Printed Name

Coordinator, Global Contracts

Title

11-09-2006

Date

ACTAVIS, INC.

"CLIENT"

Signature

Steinthor Palsson

Printed Name

Executive Vice President Operations

Title

November 6, 2006

Date

REVIEWED LEGAL DEPT.

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EXHIBIT A – FEES
TO SERVICE SCHEDULE NO. 4 - TRANSPORTATION SERVICES

In accordance with this Schedule, Client will pay to SCS the following Fees:

1. Maintenance Fee: 5 % on weekly invoiced transportation expense for TL and LTL.
2. Surcharge for invoices received from carriers not identified in the SCS Routing Guide.
3. Pricing does not include fuel surcharges. UPS Supply Chain Solutions sets fuel surcharges (if applicable) weekly based on market conditions. Fuel Surcharge is set weekly based on the diesel fuel national average price. Fuel surcharge is a percentage of linehaul.
4. Accessorial charges will be charged to the Client as incurred.
5. LTL rates based on a discount of 54% off the CZAR Lite 95 tariffs for a NMFC 77.5 for non-temperature controlled transportation. The minimum charge is $70 per shipment. Rates for temperature controlled transportation will be provided per Client request.
6. Fees for processing carrier claims $65 per claim or 3% of the claim amount, whichever is greater.
7. Customs clearance, duties, entry fees are not included in the pricing.
8. Termination fees $0.00.

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EXHIBIT B – OPERATING PARAMETERS

TO SERVICE SCHEDULE NO. 4 - TRANSPORTATION SERVICES

Based on the data supplied by Client, SCS anticipates the following Operating Parameters:

1. Goods: pharmaceutical products not requiring temperature or humidity controls while in transit.
2. The location of the distribution facilities at Louisville, KY and Newark, DE will not change during the term of this Schedule.
3. Hours of Operation: 9:00 AM through 5:00 PM local facility time, Monday through Friday, excluding Holidays specified in this Services Appendix.
4. Holiday Schedule:

Thanksgiving Day	Day after Thanksgiving
Christmas Day	New Year's Eve
New Year's Day	Memorial Day
4th of July	Labor Day

5. SCS will coordinate the scheduling of all inbound shipments from Client's third party manufacturers to Louisville, KY or Newark, DE.
6. SCS will coordinate both the Inbound and Outbound Transportation schedules in accordance with the mutual agreed upon work instructions of both Client and SCS.
7. Client will at all times retain the right to route its movements on any Transportation Provider of its choosing (Client also understands that in choosing an alternative carrier to our preferred vendor base may translate to a higher cost structure).
8. Client may also decide to route its own freight under its own contracts with the marketplace. Should Client decide to initiate this strategy, Client would allow a 90 day transition period to allow SCS to re-allocate the Traffic Manager.
9. SCS will also monitor all outbound movements on an exception report basis to ensure that any and all movements are delivered in a timely basis and provide such report to Actavis on a regular basis

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